

STATE OF NEW YORK

4559--A

Cal. No. 456

2025-2026 Regular Sessions

IN SENATE

February 7, 2025

Introduced by Sens. STAVISKY, HOYLMAN-SIGAL, KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the education law, in relation to requiring the appointment of a Title VI coordinator at every college and university in the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 6436-a
2 to read as follows:

3 § 6436-a. Designation of a Title VI coordinator and duties. 1. Purpose
4 and designation of coordinator. (a) To ensure students are protected
5 from illegal discrimination based on characteristics, as further
6 described in applicable state and federal law, institutions shall engage
7 in proper coordination of these efforts through a centralized process
8 and with a centralized point of contact for all compliance, similar to
9 the role of the Title IX coordinator and their role in the implementa-
10 tion of applicable federal laws, rules and regulations, and state law,
11 including article one hundred twenty-nine-B of this title.

12 (b) Within ninety days of the effective date of this section, an
13 institution, defined as a college or university chartered by the regents
14 or incorporated by special act of the legislature that maintains a
15 campus in New York state shall designate a Title VI coordinator to
16 ensure compliance with Title VI of the federal civil rights act of 1964,
17 codified at 42 U.S.C. 2000d et seq., 34 C.F.R. Part 100, and any other
18 related applicable laws, rules or regulations.

19 2. Responsibilities of the Title VI coordinator when receiving reports
20 of discrimination or harassment. If the Title VI coordinator receives a
21 report, the Title VI coordinator shall:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) offer and coordinate any supportive measures for the student or
2 students;

3 (b) notify any students who report conduct that may reasonably consti-
4 tute discrimination or harassment under this section and Title VI of the
5 federal civil rights act of 1964, of the institution's policies and/or
6 procedures; and

7 (c) ensure there is a process for investigation and resolution of any
8 complaints.

9 3. Developing training to promote equal access and participation. The
10 Title VI coordinator shall assist the institution in developing training
11 for students and employees to ensure institutional compliance, which
12 shall be delivered annually commencing with the two thousand twenty-six-
13 -two thousand twenty-seven academic year, and each academic year there-
14 after. Such training for students shall be part of onboarding, and such
15 training for employees shall be administered at the beginning of each
16 academic year for new and returning employees, and if an employee is
17 hired during an academic year, such training shall be administered with-
18 in sixty days of the date of the start of employment.

19 4. Notification of policies and procedures. The Title VI coordinator
20 shall notify all students and employees each academic year of the insti-
21 tution's policies and procedures for reporting discrimination and
22 harassment.

23 (a) Form of notification. The Title VI coordinator shall ensure that
24 the annual notification includes:

25 (i) the institution's nondiscrimination policy statement;

26 (ii) website links to all policies and procedures for reporting
27 discrimination and harassment to the institution;

28 (iii) the contact information of the Title VI coordinator; and

29 (iv) any other information the Title VI coordinator and the institu-
30 tion deem necessary.

31 5. Designees. The Title VI coordinator may have a designee or design-
32 ees to assist in carrying out the functions set forth in this section,
33 and may work with other employees to carry out the functions set forth
34 in this section, provided, however, the Title VI coordinator shall be
35 ultimately responsible for coordinating and overseeing the institution's
36 compliance with this section and with Title VI of the federal civil
37 rights act of 1964.

38 6. Training for Title VI coordinator and designee or designees. All
39 Title VI coordinators and their designees shall be trained in their
40 duties and responsibilities set forth in this section and Title VI of
41 the federal civil rights act of 1964.

42 7. Recordkeeping. (a) The Title VI coordinator shall be responsible
43 for appropriate recordkeeping related to any reports and complaints of
44 discrimination and harassment, in accordance with applicable state and
45 federal law, including all records related to assessments of reports,
46 records documenting actions the institution took to meet its obli-
47 gations, and any records of training attendance and materials.

48 8. Other duties. The Title VI coordinator may perform other relevant
49 duties as established by the institution.

50 § 2. This act shall take effect on the one hundred eightieth day after
51 it shall have become a law. Effective immediately, the addition, amend-
52 ment and/or repeal of any rule or regulation necessary for the implemen-
53 tation of this act on its effective date are authorized to be made and
54 completed on or before such effective date.